

21STCV23531 21STCV23531

County: los-angeles

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Case Number: 21STCV23531 Hearing Date: August 6, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 6, 2026

CASE NUMBER

21STCV23531

MOTION

Demurrer to First Amended Complaint

MOVING PARTIES

Defendant Maria Hendrix

OPPOSING PARTY

Plaintiff Norma Angelle Hicks

MOTION

Plaintiff Norma

Angelle Hicks ("Plaintiff") brought this action against Defendant Maria Hendrix ("Defendant") in connection with the closure of Plaintiff's in-home daycare business. Defendant demurs to Plaintiff's first amended complaint. Plaintiff filed a response to the demurrer.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

As Defendant points out, Plaintiff failed to exhaust her judicial remedies. Through an administrative decision, Plaintiff lost her license to operate her daycare business. (See Request for Judicial Notice, Exhibit A.) As such, Plaintiff was required to seek judicial review by a writ of administrative mandamus. As Plaintiff fails to allege she did so, the administrative decision would be final, and Plaintiff would be unable to challenge it in this case. (Johnson v. City of Loma Linda (2000) 24 Cal.4th 61, 69-76.)

Defendant also

argues the statute of limitations bars Plaintiff's claims. As a general rule, all of Plaintiff's claims accrued when Plaintiff lost her license to operate her daycare, unless the "discovery rule" would apply and thereby postpone the accrual of the causes of action. (Daley v. Regents of Univ. of Calif. (2019) 39 Cal.App.5th 595, 603.) The decision on the revocation of Plaintiff's license was effective as of September 23, 2016. (See Request for Judicial Notice, Exhibit A.) Plaintiff did not file the complaint in this case until June 24, 2021, more than four years and nine months after her causes of action accrued. Therefore, unless the discovery rule applies, the statute of limitations on Plaintiff's claims elapsed before she filed this action. (See Agency Holding Corp. v. Malley-Duff & Associates, Inc. (1987) 483 U.S. 143, 156 [four-year statute of limitations for civil RICO

claims].)

Finally, Plaintiff sued Defendant based on Defendant conducting inspections of Plaintiff's daycare facility. "State officials performing the functions of prosecutors in administrative proceedings are entitled to absolute immunity" (Gensburg v. Miller (1994) 31 Cal.App.4th 512, 522.) Barring any allegations otherwise, at present, Defendant's alleged conduct "falls within the scope of the prosecutorial role." (Id. at 523.) Defendant would, therefore, be immune from liability.

Accordingly, these three separate reasons establish independent bases for sustaining the demurrer. Generally, leave to amend must be allowed when there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) Although, for the reasons discussed above, it may be futile to permit Plaintiff to amend her causes of action, in an abundance of caution, the Court will provide Plaintiff with an opportunity to do so.

CONCLUSION AND ORDER

Defendant's demurrer to Plaintiff's first amended complaint is sustained with leave to amend. Plaintiff is to file and serve an amended complaint within 30 days of the notice of this order.

Defendant is ordered to provide notice of the Court's ruling and to file proof of service of same.